

approval of the exercise of such a power of sale, or if under a settlement there are no such trustees, then the persons, if any, for the time being, who are by the settlement declared to be trustees * thereof for the purposes of [*551] the Act, are for the purposes of the Act trustees of the settlement." From this definition it appears that in the case of settlements created before the Act, trustees with a power of sale, or a power of consenting to or approving of a sale, if there are any such trustees, and they only, are "trustees of the settlement" within the meaning of the Act. But trustees to whom personal estate has been bequeathed upon trust to convert it and invest the proceeds in the purchase of real estate to be settled strictly, are not trustees of the settlement for the purposes of the Act (a).

Executors with charge of debts. — Executors or trustees who, under a charge of debts, have an over-riding power to sell settled land, seem to be trustees for the purposes of the Act.

In instruments since the Act it is usual and proper to appoint expressly trustees of the settlement for the purposes of the Act.

2. Appointment by the Court. — Where there are no trustees of the settlement within the definition, or where in any other case it is expedient for the purposes of the Act that new trustees of the settlement should be appointed, the Court may, if it thinks fit, on the application of the tenant for life, or of any other person having under the settlement an estate or interest in the settled land, in possession, remainder or otherwise, or in the case of an infant of his testamentary or other guardian or next friend, appoint fit persons to be trustees under the settlement for the purposes of the Act (b).

The exercise of this power is in the discretion of the Court, and it has been laid down in a case in Ireland, that, upon an application under this section to appoint trustees, the Court should not only require to be satisfied of the fitness of the proposed trustees, but also that the purpose for which their appointment is asked is such as to render

(a) *Burke v. Gore*, 13 L. R. Ir. 367. (b) Sect. 38, sub-sect. (1).